Index Oxus Perjury and IRS Fraud

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Contempt application

(other than an application under Part 8) CPR 81.3 and 81.4

Name of court

Claim no.

Claimant's name (including ref.)

Ms. Nadia Zahmoul

Defendant's name (including ref.)

Mr. Karim Noureddine Zahmoul

Date

Day	Month	Year
2 7	1 1	2 0 2 4

1. What is your name or, if you are a legal representative, the name of your firm?

Nadia Zahmoul

2. Are you a

- [x] Claimant
- [ ] Legal representative of the claimant

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3. Who should be served with this application?

First name(s)

Mr. Karim Noureddine

Last name

Zahmoul

4. Please give the service address of any party named in question 3

Building and street

158 Rua Rodrigues Sampaio, 1 Esq

Second line of address

Town or city

Lisbon

County (optional)

Portugal

Postcode

1 1 5 0 2 8 2

The written evidence of the claimant in support of this application, in the form of an affidavit or affirmation, is attached to this application

If permission is required to make this application, the application for permission (headed 'Application for permission') must be included in this application

To the defendant

If upon determination of this application you are held to be in contempt of court you may be imprisoned or fined, or your assets may be seized

Your rights

You have the right to be legally represented in the contempt proceedings.

You are entitled to a reasonable opportunity to obtain legal representation and to apply for legal aid which may be available without any means test.

You may be entitled to the services of an interpreter.

You are entitled to a reasonable time to prepare for the hearing of the contempt application against you.

You are entitled but not obliged to give written and oral evidence in your defence.

You have the right to remain silent and may not be compelled to answer any question the answer to which may incriminate you.

If you do not attend the hearing, the court may proceed in your absence. Whether or not you attend, the court will only find you in contempt if satisfied beyond reasonable doubt of the facts constituting contempt and that they do constitute contempt.

If the court is satisfied that you have committed a contempt, the court may punish you by a fine, imprisonment, confiscation of assets or other punishment permitted under the law.

If you admit the contempt and wish to apologise to the court, that is likely to reduce the seriousness of any punishment by the court.

The court's findings will be provided in writing as soon as practicable after the hearing.

The court will sit in public, unless and to the extent that the court orders otherwise. Its findings will be made public.

The following information is required to be included in the application pursuant to rule 81.4(2) of the Civil Procedure Rules 1998.

5. Nature of the contempt (for example, breach of an order or undertaking or contempt in the face of the court)

The trial took place on 19th - 28th Feb 2024 in High Court. The Perjury Act 1911 defines Perjury as follows: "If any person lawfully sworn as a witness or as an interpreter in a judicial proceeding wilfully makes a statement material in that proceeding, which he knows to be false or does not believe to be true."
The defendant committed perjury and made false representations in his sworn statement of assets ES2 and in his witness evidence under oath. He instructed his counsel to make false representations in closing submissions to the court.The perjury is material because the claimant's case is that the defendant's disclosures are deficient, fraudulent and cannot be trusted. The defendant denies this. Thus the perjury under oath at the trial is crucial because it provides evidence of the defendant's contempt of court, which is recorded, and which is available in the court transcripts.
The defendant's contempt is pervasive in all his disclosures, sworn statements, and representations throughout the proceedings.
(Continued in accompanying affidavit).

6. Is the application based on breach of an order?

☐ Yes. **Go to question 7**

☑ No. **Go to question 10**

7. Date and terms of the order allegedly breached or disobeyed ('the order'). (If there is more than one such order, set out the date and terms of each order.)

8. Date of personal service of the order

Day	Month	Year

If the order was not personally served, state the date and terms of any order dispensing with personal service of the order.

9. Did the order include a penal notice?

☐ Yes

☐ No

10. Date and the terms of any undertaking allegedly breached ('the undertaking'). (If there is more than one such undertaking set out the date and terms of each undertaking.)

The trial took place from 19th to 28th February 2024 at the Royal Courts of Justice before Justice MacDonald.
1. The defendant's sworn ES2 asset schedule dated 19.02.2024 identifies Oxus Acquisition Corp. as a "non-matrimonial business interest" and attributes a fair market value of "zero" to the 50,000 Oxus shares.
2. The defendant gave his witness evidence under oath on 22nd, 23rd, and 26th February. He made three assertions concerning Oxus: (i) he represented that he had resigned his position as an independent director of the board of Oxus, (ii) he stated that his Founders Shares were worth $0, and (iii) he represented that his "involvment" with Oxus was a "non-matrimonial interest".
3. On 26.02.2024, the defendant's counsel made closing submissions and stated: "Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares, but they have no value"
1, 2, and 3 are false representations and constitute acts of fraud by false representation. The defendant dishonestly made representations which he knew to be false at the time he made them in order to make a financial gain for himself and cause a financial loss to the claimant.

11. Does the claimant, believe that the person who gave the undertaking understood its terms and the consequences of failure to comply with it?

- [x] Yes
- [ ] No

12. Summary of facts alleged to constitute the contempt (set these out very briefly, in chronological order, in numbered points)

Oxus Proxy Statement and Prospectus filed with the SEC on 16 January 2024 (p. 340) states:
1. "On June 1, 2022, Mr. Karim Zahmoul was appointed as independent director. On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was $0.02 million or $0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model".
2. SEC Form 3 Initial Statement of Beneficial Ownership of Securities dated 7 June 2022 states: "The shares of Class B ordinary shares have no expiration date and will automatically convert into shares of Class A ordinary shares at the time of the Issuer's initial business combination, or earlier at the option of the holder, on a one-for-one basis, subject to adjustment as set forth in the Issuer's registration statement on Form S-1."
3. The SEC Proxy Statement and Prospectus dated 16 January 2024 states that the value of the respondent's beneficial ownership in Oxus is approximately $565,000 ($1,695,000/3).
"The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately $1,695,000 based on the closing price of Class A Shares of $11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares" (p. 34).
4. On 2 February 2024, Oxus held an extraordinary general meeting of shareholders and approved the closing of the transaction.
4. On 7 February 2024 (the Closing Date) the Business Combination was consummated (ie the Performance Conditions were met). The directors' Class B shares were automatically converted into the new company shares in accordance with the exchange ratio.
5. On 8 February 2024, the new company began trading on Nasdaq under the ticker symbol BRLS. The value of the respondent's shares can be calculated by direct observation using a marked-to-market valuation (number of shares times share price in $).
6. On 8 February 2024, Kenes Rakishev posted on his Instagram account several pictures of himself, the respondent and the Oxus/Borealis team at the Nasdaq Exchange in New York, celebrating the launch of BRLS. Pictures of the respondent are also published on the Nasdaq's website.
7. The U.K. trial took place from 19 to 28 Feb 2024. In his sworn statement of assets dated 19.02.2024 the defendant reported $0 for the Oxus shares and he instructed his counsel to state in her closing submissions on 26.02.2024 that his shares in Oxus "have no value" (continued in attached affidavit).

Statement of truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☑ **I believe** that the facts stated in this contempt application are true.

☐ **The claimant believes** that the facts stated in this contempt application are true.

Signature for the statement of truth

Nadia Zahmoul

☑ Claimant

☐ Litigation friend

☐ Claimant's legal representative

Date

Day	Month	Year
2 7	1 1	2 0 2 4

Full name

Nadia Zahmoul

Name of claimant's legal representative's firm

N.A.

Position or office held (if signing on behalf of a company)

N.A.

Signature for the Contempt application

Nadia Zahmoul

- [x] Claimant
- [ ] Litigation friend
- [ ] Claimant's legal representative

Date

Day	Month	Year
2 7	1 1	2 0 2 4

Full name

Nadia Zahmoul

Name of claimant's legal representative's firm

N.A.

Position or office held (if signing on behalf of a company)

N.A.

Claimant's address to which documents about this application should be sent

Building and street

35 Queens Gate Gardens

Second line of address

Town or city

London

County (optional)

Postcode

S W 7 5 R R

Phone number

+44 (0) 79 1332 8615

Email address

Nadia@rosekross.com

Fax number

N.A.

DX number

N.A.

Reference number

N.A.

Court fee

What you need to pay

The court fee for this application is **£303**

How to pay the court fee

☐ I attached a **Cheque/Postal order,** made payable to 'HMCTS'

☐ **A debit/credit card payment**

☐ I will pay over the phone, please call me on the number below

☐ please email me details on how to pay, my email address is

☐ **Prepayment –** If you have already made a payment please note the reference number here

Your reference

☐ **In person at** the court/office

☐ **I have not included payment because**

☐ I have applied for Help with Fees online and my reference number is

H	W	F						

☑ I am applying for Help with Fees, see attached form **EX160**

☐ Other – please explain why

☐ **Payment by account –** for use by legal professionals

Your account number

P	B	A							

Your reference (if applicable)

What if I cannot afford to pay a court fee?

You may not have to pay a fee, or you may get some money off it if you only have a small amount of savings and investments, receive certain benefits or are on a low income. This is sometimes known as 'fee remission.'

You can apply for help with court and tribunal fees online at www.gov.uk/help-with-court-fees or through the 'EX160 Apply for help with fees' form and 'EX160A – How to apply for help with fees' guidance.

Fee account – a way for solicitors, local authorities and other regular users to make payments relating to civil and family cases.

Summary

I make this statement in support of my Contempt Application dated 18 October 2024. I set forth the defendant's acts which I allege constitute contempt and will provide evidence, which is credible, reliable, and sufficient to prove contempt to the criminal standard. The defendant's conduct has rendered it impossible to hold a fair trial. He set out to use the court process as an instrument of fraud and has resorted to forgery, perjury and the suppression of evidence in order to prevent the court from finding out the truth. He is determined to subvert the adjudicative process by fraudulent means and is abusing the judiciary process.

The defendant's destructive litigation strategy aims to deflect from his substantial non-disclosure of assets and his illicit activities. To that end, the children and I have been subjected to extreme economic abuse and coercion. Our daughters are 17 and 19-years old, and both are under my care. We have been homeless since February 2024, and we do not financial resources for food, groceries, and basic needs. The defendant maintains sole ownership and control over our joint matrimonial assets and liquidity and is abusing his position.

I am a litigant in person and intend to bring to justice the defendant's acts of perjury, fraud, and contempt of court. I am seeking a fair, public, and impartial trial.

The principal issues to consider are (1) how serious is the conduct (i.e. what was, or could have been, the impact on the administration of justice?); (2) what is the culpability of the defendant (his knowledge and involvement, was the action premeditated, was there a motivation, has the conduct been repeated?); (3) whether the defendant's actions were or created a risk of an interference with the administration of justice that was sufficiently serious to amount to criminal contempt; and (4) whether the respondent had a specific intention to interfere with the administration of justice.

In terms of harm, as a result of the defendant's conduct the outcome of the proceedings was unfair and the case is still in the courts. This was as the respondent intended. I suffered substantial harm as a result of these actions. The defendant's conduct undermines the public's trust in the judiciary system. The defendant was motivated by his personal gain and his lack of

remorse, moral, and decency. The defendant committed fraud by false representation. He dishonestly made a false representation and intended, by making the representation, to make a gain for himself or another, or to cause loss to another, or to expose another to a risk of loss.

In terms of culpability, the defendant was responsible for his sworn statement of assets ES2 dated 19 February 2024 which he filed with the court as evidence for the trial. Likewise, the defendant was responsible for the submissions and the evidence before the trial judge, whether in writing or in oral submissions. He directed his counsel to make statements which were untrue on three occasions: (i) in her opening statement on behalf of the defendant on 19th February 2024, (ii) in her oral submissions of 26th February 2024, and (iii) in her closing submissions of 28th February 2024. The defendant knew these representations to be false, untrue or misleading at the time when he made them or directed his counsel to make them. He was in no doubt that his conduct amounted to contempt, and he directed his solicitors to ignore my emails of 29th February 2024, 4th and 6th March 2024 requesting an explanation regarding the false representation.

The defendant was a director on the board of Oxus Acquisition Corp. He was on the Audit Committee, the Compensation Committee, and the Nominating Committee. He executed all the SEC forms and had a duty to comply with the SEC disclosure requirements of Regulation S-K Title 17, Part 229.103.

Between June 2021 and February 2024, he signed all the Registration Statements on Form S-4 filed with the SEC. The defendant had knowledge of all matters related to the Oxus SPAC transaction and this is evidenced in the SEC filing which are available via the Edgar website.

https://www.sec.gov/edgar/browse/?CIK=1852973&owner=exclude

Perjury Act 1911

The Perjury Act 1911 states that perjury occurs "***If any person lawfully sworn as a witness or as an interpreter in a judicial proceeding willfully makes a statement material in that proceeding, which he knows to be false or does not believe to be true***." In his sworn financial statement on Form ES2 dated 19 February 2024, and in his witness evidence at the trial the defendant

represented that the value of his Oxus shares was $0. At the time he made these representations under oath he knew them to be false and he knowingly committed perjury with the intention of making a financial gain for himself and causing me a financial loss. He withheld **material information** from the court, failing to disclose that the performance condition for his stock-based compensation had been met eleven days prior to the start of trial and that his Founders Shares had a market value of $500,000.

What is a SPAC?

SPACs are shell companies organized and managed by a sponsor for the purpose of merging with or acquiring one or more unidentified private operating companies, commonly known as a de-SPAC transaction, within a certain time frame. The de-SPAC transaction is a hybrid transaction that contains elements of both an initial public offering ("IPO") and a merger and acquisition ("M&A") transaction. While structured as an M&A transaction, the de-SPAC transaction also is the functional equivalent of the private target company's IPO, because it results in the target company becoming part of a combined company that is a reporting company and provides the private target company with access to cash proceeds that the SPAC had previously raised from the public. As part of this process, the shareholders of the SPAC go from owning shares in a shell company to owning shares in a combined company that conducts the business of the private target.

Once formed, a SPAC will conduct its IPO in the form of a firm commitment underwritten IPO of $5 million or more in units consisting of redeemable shares and of warrants. The underwriting fees for a SPAC IPO typically approximate 5% to 5.5% of the offering proceeds, and a significant portion of those fees (around 3% of the IPO proceeds) are conditioned on the completion of a de-SPAC transaction. The SPAC sponsor is usually compensated through a "promote" or "founder's shares"—i.e., discounted SPAC shares received prior to the SPAC's IPO that generally only have value if a de-SPAC transaction occurs.

Following its IPO, a SPAC places all or substantially all of the IPO proceeds into a trust or escrow account. The SPAC typically registers its shares and warrants under section 12(b) of the Securities Exchange Act of 1934 ("Exchange Act") and lists the units (typically consisting of a common share

and a fraction of a warrant) for trading on a national securities exchange.

Next, the SPAC seeks to identify a target company for a de-SPAC transaction within the time frame specified in its governing documents. If the SPAC does not complete a de-SPAC transaction within that time frame, it may seek an extension (often requiring approval from its shareholders) or dissolve and liquidate. If the SPAC enters into a business combination agreement with a target company, the SPAC files a Form 8-K announcing the transaction that includes certain information on the material terms of the business combination agreement.

Directors' Founders Shares

The following paragraph is an excerpt the Proxy Statement and Prospectus Oxus SPAC filed with the SEC on 16 January 2024. It states that the value of the respondent's beneficial ownership in Oxus is approximately $565,000 ($1,695,000/3).

"The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately $1,695,000 based on the closing price of Class A Shares of $11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares" (**exhibit NZ1 p. 65**).

As of 18 October 2024, the SEC filings show the defendant's position remains 50,000 shares. He has not disclosed his ownership of warrants, which trade separately on Nasdaq under the ticker symbol BRLSW.

Timeline of the Oxus De-SPAC

31st May 2022	**SEC Form 8-K Current Report Oxus Acquisition Corp. (exhibit NZ1 p. 8)** "On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, Mr. Karim Zahmoul was appointed as independent director. On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to Mr. Karim Zahmoul on June 7, 2022, was $0.02 million or $0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model. Stock-based compensation would be recognized at the date the performance conditions are met (i.e. upon consummation of a Business Combination)"**.**
3rd June 2022	**Form 8-K Exhibit 24.1** (**exhibit NZ1 p. 12**) The defendant causes a Power of Attorney to be executed. As such, he had knowledge of his appointment and the transfer of shares on 3 June 2022. This is not consistent with the representation made by his solicitors on 6 June 2022.
6th June 2022	**Correspondence from defendant's solicitors** (**exhibit NZ1 p. 15**) "My client has been offered a directorship role in a SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this, but they will be provided once executed. My client will not receive income from the role, but **he may receive shares in the company** subject to its performance – full details are yet to be finalized but will be confirmed when they are."
7th June 2022	**SEC Form 3 "Initial Statement of Beneficial Ownership of Securities"** (**exhibit NZ1 p. 14**) Mr. Zahmoul received 50,000 Class B ordinary shares. This was announced on 31 May 2024 on Form 8-K. The Founders shares were granted on 7th June 2022 and recorded on 9th June 2022 on Form 3 "Initial Statement of Beneficial Ownership of Securities". Form 3 states as follows: "The shares of Class B ordinary shares have no expiration date and **will automatically convert into shares of Class A ordinary shares at the time of the Issuer's initial business combination,** or earlier at the option of the holder, on a one-for-one basis, subject to adjustment as set forth in the Issuer's registration statement on Form S-1 (File No. 333-258183)."
14th August 2023	**Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 39)** The defendant signs the Registration Statement in his capacity as a director.
23rd October 2023	**Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 42)** The defendant signs the Registration Statement in his capacity as a director.
13th Nov 2023	**Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 46)** The defendant signs the Registration Statement in his capacity as a director.

22nd Dec 2023	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 50) **The defendant signs the Registration Statement in his capacity as a director.**
5th Jan 2024	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 55) **The defendant signs the Registration Statement in his capacity as a director.**
11th Jan 2024	**Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 60)** The defendant signs the Registration Statement in his capacity as a director.
16th Jan 2024	**Proxy Statement and Prospectus (exhibit NZ1 p. 70)** The defendant's beneficial ownership of Oxus shares is 50,000 as of 11 January 2024.
6th Feb 2024	**Form 8-K Exhibit 3.1 Certificate of Continuance (exhibit NZ1 p. 77)** The Board approved the Continuance (as defined in the Proxy Statement), and the adoption of the articles and by-laws of New Borealis (as defined in the Proxy Statement) in substantially the form attached to the Proxy Statement as Annex I for purposes of the articles and by-laws of New Borealis following the completion of the Continuance. The defendant's signature appears in p. 77 of the Certificate of Continuance.
7TH Feb 2024	**Form 8-K filed on 13 Feb 2024 reports the closing of the Business Combination**. Borealis, Oxus, and Newco, consummated the Transaction, following the approval at the Extraordinary General Meeting. As set forth in the Securities and Exchange Commission (SEC) S-4 Registration Statements signed by the defendant, the closing of the Business Combination on 7th February 2024 is a **material event because it triggers the Performance Condition for the Founders Shares which were granted subject to the closing of the Business Combination transaction.**
8th Feb 2024	**SEC Form 8-K Exhibit 99.1** stated that following the Business Combination of 7 February 2024 Borealis would start trading on Nasdaq on 8 February 2024 under the ticker symbol BRLS. Eleven days before the U.K. trial began, Oxus SPAC completed its business combination, and the new shares began trading on Nasdaq. On 8 February 2024 at 4:45pm EST, Rakishev posted a photograph on his Instagram account featuring the defendant, three associates, and himself at the Nasdaq exchange in New York's Times Square. The time stamp is visible on the picture.

Kenes Rakeshev (second from right) and Mr. Zahmoul (second from left) outside Nasdaq on 8th February 2024 when Oxus/Borealis was launched (BRLS).

Timeline of perjuries and false statements

18th to 28th Feb 2024	**Perjury in Sworn Statement of Assets on Form ES2 (exhibit NZ1 p. 91)** The trial started on 19 February 2024 at the Royal Courts of Justice, High Court. The defendant filed his sworn statement of assets on Form ES2 dated 19 February 2024. He reported a fair value of $0 for the Oxus shares. **On that day, the market value of the shares shares was $500,000 as per Nasdaq closing price.**
19th Feb 2024	**Counsel Note on Behalf of the Respondent Husband (exhibit NZ2 p. 111)** Para. 24. "During these proceedings, H has continued to invest and has channeled some of these projects through EMVirya Ltd a company in which he is an 80% shareholder. The company does nothing other than receive fees. H has also taken on work as a non-executive director for Oxus Acquisition Corp. He is not paid a salary but has been awarded founder shares for his input **[4335]**. **He is hopeful that those shares will in time have value to reflect his input.** Otherwise, H plans, subject to liquidity pressures, to carry on as a niche private investor seeking out profitable returns in the future". **This is a false statement**. On 19 February 2024 the shares's market value was approximately $500,000.
22nd Feb 2024	**Witness Evidence** The defendant was lawfully sworn as a witness in the U.K. trial. He wilfully made false statements which he knew to be false and did not believe to be true; and which were material in the proceedings. He falsely stated in his witness evidence to the Court that the value of the Oxus shares was $0.
27th Feb 2024	**Counsel Oral Submissions on Behalf of Respondent Husband (exhibit NZ2 p. 93)** In her closing submissions on behalf of the defendant Ms Campbell KC asserted: "Oxus, Karim Zahmoul was assisting on an advisory basis. **He has some shares; they are of no value**". This was a false statement. On that day, the market value of the Oxus shares was $500,000, as per Nasdaq trading prices.
28th Feb 2024	**Counsel Closing Submissions on Behalf of the Respondent Husband (exhibit NZ2 p. 170)** **Income resources – s.25(2)(a)** "25. H has not been in banking since 2014. Those days of high income awards have long passed. He worked for a renewable energy development project between 2014 and 2017. The income earned in those years has been calculated by his accountant at **[2229]**. These are modest sums. The work did not last. Between 2018 and 2020 H worked for Sphere Digital in Morocco. He had to go overseas to get that job, which ended in litigation. H attempted to use his consultancy skills to generate income through EMVirya Ltd, but this has not been successful, and the business has not made sufficient income to draw a salary or profit. He no longer works as a director of Oxus (a role he lost when the business merged with Borealis) but did not earn any income and was only reimbursed business related expenses, **[s.25 statement paragraph 30]**."

28th February 2024

Immediately after the conclusion of the trial, I checked my SEC notifications and realized that the business combination had closed on 7 February 2024, and that the defendant had committed perjury at the trial. I met with my barrister, Brent Molyneux KC, on the same day. He read the information and confirmed that the defendant had committed a perjury and that this constituted material information which should be communicated to the judge as soon as possible.

29th February 2024

First email to defendant's solicitors.

My solicitors sent the following email to the defendant's legal team **(exhibit NZ1 p. 95**)

"*Dear Valeria, we attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of $9.20 (and your client had 50,000 shares in the pre-merger OXUS)* ***please can you explain the value of his stockholding with reference to the attached documents and any others in your client's possession – and why he ascribed a nil value to his equity in the ES2****. We look forward to hearing from you. Kind regards, Faye*".

We sent two follow-on emails on 4 March 2024 at 12:46, and 6 March 2024 at 2:28 (**exhibit NZ1 p. 99 and 102**) but the defendant's team did not reply. At that stage, my counsel, Mr. Molyneux KC advised me to write to the judge, which I did on 6th and 7thMarch 2024.

6th March 2024

On 6 March 2024 I became a litigant in person due to lack of funding. I informed the judge that the Business Combination transaction occurred on 7 February 2024 and the Performance Condition had been met. I stated that the new company shares had started trading on Nasdaq on 8 February 2024, providing full visibility on the market value of the defendant's shares. I attached documentary evidence of the defendant's knowledge and

his involvement in the entire lifecycle of the SPAC and De-SPAC transactions, consistent with his duties as an independent director of Oxus SPAC. The evidence is in exhibits NZ1 and NZ2 and consists primarily of SEC filings which are available through Edgar.com, the filing platform of the SEC. My email to the judge and enclosures are in **exhibit NZ1 p. 101 through 122**.

7th March 2024

As I was a litigant in person and did not have legal advice, I wasn't sure of the procedure. I prepared a comprehensive statement on Form D-11 setting forth the events and the evidence and filed it with the Court on 7 March 2024. I included a timeline of the SEC filings for the period from 2021 to 2024, and excerpts from the Proxy Statement and Prospectus Oxus of 16 January 2024.

The table below shows the actual beneficial ownership of Oxus Shares as of September 30, 2023, and pro forma information regarding the beneficial ownership of New Borealis Common Shares on the date of the Closing. Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus. The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of **January 11, 2024**. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Fig 1: Beneficial ownership: Directors, Executive Officers and Sponsor of Oxus (page 287)

	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
Name and Address of Beneficial Owner[1]	**Number**	**Percentage**	**Number**	**Percentage**	**Number**	**Percentage**
Askar Mametov[11]	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500[4][5]	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531[8][9]	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719[10]	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*
Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov[12]	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						

Source: SEC Filing S-4, 11th January 2024

Statement of truth

I understand that the proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

I believe that the facts stated in this witness statement are true

Signed

Nadia Zahmoul

Nadia Zahmoul
this 18th Day of October 2024

Date	SEC Document Type	Description of Document	Applicant's Comments
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2021			
01/04/2021	**SEC Form S-1**	**REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933. Oxus Acquisition Corp, a newly formed blank check company (SPAC) incorporated as a Cayman Island exempted company for the purpose of entering into a merger, share echange, asset acquisition, share purchase, recapitalization, reorganization or other similar business combination with one or more businesses or entities, refered to as "Target Business".** **This form S-1 is the Draft Registration / preliminary prospectus for the IPO of the securities issued by Oxus. Each unit has an offering price of $10.00 and consists of one Class A ordinary share and one-half of one warrant. Each whole warrant entitles the holder thereof to purchase one Class A ordinary share at a price of $11.50 per share**	
19/08/2021	**SEC Form S-1 (1st amendment)**	Each unit has an offering price of $10.00 and consists of one Class A ordinary share and one warrant. Each warrant entitles the holder thereof to purchase one Class A ordinary share at a price of $11.50 per share, subject to adjustment as described herein. Each warrant will become exercisable 30 days after the completion of the initial business combination and will expire on the fifth anniversary of the completion of an initial business combination, or earlier upon redemption or liquidation.	
02/09/2021	**Nasdaq Form 8-A 12 (b)**	Registration of (i) Units, each consisting of one Class A ordinary share and one warrant, (ii) of Class A ordinary shares with par value of $0.0001 per share, and Warrants, each whole warrant exercisable for one Class A ordinary share at an exercise price of $11.50.	
02/09/2021	**SEC Notice of Effectiveness of Form S-1**		
02/09/2021	**Pursuant to SEC Rule 424 (b) (4)**	**PROSPECTUS**	
02/09/2021 (reported 9 sept 2021)	**SEC Form 8-K**	**On 8 Sept 2021 the Cie raised $150m in a public offering. A total of $153,000,000 of the net proceeds from the Offering and the Private Placement was placed in a trust account established for the benefit of the Company's public shareholders (the "Trust Account"), with Continental acting as trustee.**	
08/09/2021	**SEC Form 8-K**	On September 8, 2021, Oxus Acquisition Corp., a Cayman Islands exempted company (the "Company"), consummated its initial public offering (the "Offering") of 15,000,000 units (the "Units"). The Units were sold at an offering price of $10.00 per Unit, generating gross proceeds of $150,000,000. Simultaneously with the consummation of the Offering, Oxus completed a private placement of an aggregate of 8,400,000 warrants (the "Private Placement Warrants") at a price of $1.00 per Private Placement Warrant, generating gross proceeds of $8,400,000 (the "Private Placement"). A total of $153,000,000 of the net proceeds from the Offering and the Private Placement was deposited in a trust account established for the benefit of the Company's public shareholders. On September 9, 2021, the underwriters notified the Company of their ***exercise of the over-allotment option in full*** and purchased 2,250,000 additional Units at $10.00 per Unit upon the closing of the over-allotment option, generating gross proceeds of ***$22,500,000***	

Date	SEC Document Type	Description of Document	Applicant's Comments
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2022			
01/06/2022	**SEC-Form 8-K**	Oxus Acquisition Corp. **Appoints Karim Zahmoul to BOD** effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	
03/06/2022	**Exhibit 24.1 to SEC-Form 8-K**	**Karim Zahmoul causes POA to be executed** KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any ofAlan I _ Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its hue and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to Sign any and all instruments,certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the ''Exchange Act"),and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws ofthe Financial Industry Regulatory Authority; 2.prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC; 3.seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefitplan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attomeys-in-fact and the undersigned approves and ratifies any such release of information; and 4.perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.	**Date as of which he had knowledge of appointment and share allocation contrary to HFC's representation of appointment and continengent compensation.**
06/06/2022	**SEC-Form 8-K Current Report**	SEC-Form 8 Accepted Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the ***Audit Committee of the BOD.***	
06/06/2022	**Letter from HFC to Withers**	**"My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed."**	**Factually incorrect as Mr. Zahmoul (1) was appointed to the BOD on 1 June 2022; and (2) caused a POA to be executed on 3 June 2022 which faciliated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A shares. None of this was disclosed by HFC. In fact, HFC goes out of their way to mislead us: 'he may receive shares in the company subject to its performance'.**
06/06/2022	**Letter from HFC to Withers**	**"My client will not receive income from the role but he may receive shares in the company subject'to its performance – full details are yet to be finalised but will be confirmed when they are."**	**Factually incorrect as Mr. Zahmoul caused a POA to be executed on 3 June 2022 which faciliated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A Shares.**
07/06/2022	**SEC-Form 3 Initial Statement of Beneficial Ownership of Securities**	**INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES.** Karim Zahmould receives **50,000 Class A Ordinary Shares** in Oxus Acquisition Corp.	**HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."**
09/06/2202	**SEC-Form 3 Initial Statement of Beneficial Ownership of Securities**	**INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES.** **SEC-Form 3** Files Karim Zahmould receives **50,000 Class A Ordinary Shares** in Oxus Acquisition Corp.	**HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."**
17/06/2022	**Yahoo Finance**	OXUS Shares @ $9.99 per Share; Current Enterprise Value of 215.36 Million	

Date	SEC Document Type	Description of Document	Applicant's Comments
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2023			
23/02/2023	**SEC Reg FD**	**Business Combination Agreement. On February 24, 2023, Oxus Acquisition Corp. and Borealis Foods Inc., a corporation incorporated under the laws of Canada, jointly issued a press release announcing the execution of a business combination agreement on February 23, 2023**	
03/03/2023	**SEC-Form 8-K**	**EXTRAORDINARY GENERAL MEETING**. On March 3, 2023, in connection with the Extraordinary General Meeting, Oxus filed an amendment (the "Charter Amendment") to the Company's Amended and Restated Memorandum and Articles of Association (the "Charter") with the Registrar of Companies in the Cayman Islands to (1) extend the date by which the Company must consummate its initial business combination from **March 8, 2023 to December 8, 2023**, or such earlier date as determined by the Company's board of directors (the "Extended Date") and (2) **provide for the right of a holder of Class B ordinary shares of the Company to convert into Class A ordinary shares on a one-for-one basis prior to the closing of a business combination at the election of such holder**. The Company's shareholders approved the Charter Amendment at the Extraordinary General Meeting on March 2, 2023.	
14/08/2023	**SEC-Form S-4**	**REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933** **PROXY STATEMENT AND PROSPECTUS**	
13/11/2023	**SEC-Form S-4 (2nd amendment)**	**BENEFICIAL OWNERSHIP OF DIRECTORS: The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately $1,657,500 based on the closing price of Class A Shares of $11.05 on the Nasdaq on October 17, 2023. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares;** **LOCK-UP AGREEMENTS: In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds $12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.**	

Date	SEC Document Type	Description of Document	Applicant's Comments
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2024			
16/01/2024	SEC Proxy Statement and Prospectus	See Summary of Key Points	
07/02/2024	SEC Form 8-K	CLOSING OF BUSINESS COMBINATION: On February 7, 2024 (the "Closing Date"), Borealis Foods Inc., a corporation incorporated under the laws of Canada ("Borealis"), Oxus Acquisition Corp., a Cayman Islands exempted company ("Oxus"), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus ("Newco"), consummated the transactions (collectively, the "Transaction") contemplated by the Business Combination Agreement, dated as of February 23, 2023, EXCHANGE RATE OF EQUITY. Upon the closing of the Transaction, the following occurred: The common shares of Borealis were exchanged for shares of New Borealis Common Shares equal to the quotient of (a) $150,000,000 minus Borealis' Closing Net Indebtedness, as agreed to by the parties, of $17,000,000, which equals $133,000,000, divided by (b) $10.00 (the "Aggregate Transaction Consideration"). Each Borealis Common Share was exchanged for 0.0661 of a New Borealis Common Share, which is equal to the quotient obtained by dividing the Aggregate Transaction Consideration by the aggregate number of Borealis Common Shares issued and outstanding immediately prior to the Borealis Amalgamation. As of the Closing Date, the Aggregate Transaction Consideration was 13,300,000 New Oxus Common Shares, and was based on 201,206,834 Borealis Common Shares issued and outstanding, with an exchange rate of 0.0661, which the process is described in the final prospectus and definitive proxy statement, dated January 16, 2024 (the "Proxy Statement/Prospectus") filed by Oxus with the SEC.	
08/02/2024	NASDAQ Press Release	Borealis Foods Inc commenced trading on the Nasdaq under the ticker symbol "BRLS" on February 8, 2024.	
19/02/2024	High Court Trial/Sworn Statement of Assets ES2	The defendant swears his asset schedule on Form ES2 and assigns a value of zero to his 50,000 shares in Oxus Acquisition Corp.	Sworn Statement of Assets ES2 - see evidence before the court
22/02/2024	High Court Trial/Witness evidence	The defendant gives evidence under oath and states that his Oxus shares have no value.	
26/02/2024	High Court Trial/Closing Submissions	In her closing submissions, the respondent's counsel, Ms. Campbell KC, states: "Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares; they are of no value"	See Transcript of Evidence - page 92

Date	SEC Document Type	Description of Document	Applicant's Comments
28/02/2024	High Court Trial	Immediately after the conclusion of the trial, the claimant checks her SEC notifications and sees the regulatory filings Oxus made in February in connection with the closing transaction with Borealis. She realizes that the defendant committed perjury.	
28/02/2024	Email to Defendant's legal team	The claimant's legal team sends the following email to the other side: "Dear Valeria, we attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of $9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your client's possession – and why he ascribed a nil value to his equity in the ES2. We look forward to hearing from you. Kind regards, Faye".	
3/29/2024 & 04/03/2024	Email to Defendant's legal team	The claimant's solicitors sent two follow-on emails on 29 February 2024 at 17:07, and 4 March 2024 at 12:46, but the defendant's legal team did not reply.	
06/03/2024	1st email to the judge	The claimant becomes a litigant in person due to lack of funding. She emails the judge the SEC filings and provides documentary evidence of the defendant's knowledge prior to the start of the High Court trial, including his signature on all the SEC filings as a Director of Oxus,	
07/03/2024	2nd email to the judge	The claimant sends a second email to inform the court that the defendant committed perjury. As she no longer has legal advice, she uses a Form D-11 in case the procedure requires it.	
09/04/2024	3rd email to the judge	The claimant sends a third email to the court with substantial background information on the Kazakh oligarch who controls Oxus Spac and employs the defendant. She sends a photograph the oligarch posted in his own Instagram account on 9 February 2024 celebrating the company's public listing on NASDAQ.	
19/04/2024	The judgment is handed down	The judgment makes findings which are not consistent with the evidence before the court at the trial, nor are they consistent with the transcripts of oral evidence and the closing submissiions.	See Transcript of Evidence and Form ES2 sworn on 19 February 2024

Claim Form

In the	Kings Bench Division Royal Courts of Justice Strand
Fee Account no.	
Help with Fees - Ref no. (if applicable)	H W F - A T N - P N D

You may be able to issue your claim online which may save time and money. Go to www.moneyclaims.service.gov.uk/make-claim to find out more.

	For court use only
Claim no.	
Issue date	

Claimant(s) name(s) and address(es) including postcode
Ms. Nadia Zahmoul
35 Queens Gate Gardens
London SW7 5RR

SEAL

Defendant(s) name and address(es) including postcode
Mr. Karim Noureddine Zahmoul
158 Rua Rodrigues Sampaio, 1 Esq
Lisbon
Portugal
1150282

Brief details of claim
The defendant committed perjury and made false representations in his sworn statement of assets ES2 and in his witness evidence under oath. He instructed his counsel to make false representations in closing submissions to the court.In his sworn financial statement on Form ES2 dated 19 February 2024, and in his witness evidence at the trial the defendant represented that the value of his Oxus shares was £0. At the time he made these representations under oath he knew them to be false and he knowingly committed perjury with the intention of making a financial gain for himself and causing me a financial loss. He withheld material information from the court, failing to disclose that the performance condition for his stock-based compensation had been met eleven days prior to the start of trial and that his Founders Shares had a market value of £397,208.

Value
£397,208 plus value of the warrants (BRLSW) plus damages and compensation for harm. The defendant committed fraud by false representation. I suffered substantial harm as a result of these actions. The defendant’s conduct undermines the public’s trust in the judiciary system. He was motivated by his personal gain, and he lacks remorse, and moral decency.

Defendant’s name and address for service including postcode

Mr. Karim Zahmoul
158 Rua Rodrigues Sampaio, 1 Esq
Lisbon
Portugal
1150282

	£
Amount claimed	£397,208 plus warr
Court fee	
Legal representative’s costs	
Total amount	

For further details of the courts www.gov.uk/find-court-tribunal.
When corresponding with the Court, please address forms or letters to the Manager and always quote the claim number.

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Claim no.	

You must indicate your preferred County Court Hearing Centre for hearings here (see notes for guidance)

Kings Bench Division Royal Courts of Justice Strand
London WC2A 2LL

Do you believe you, or a witness who will give evidence on your behalf, are vulnerable in any way which the court needs to consider?

☑ Yes. Please explain in what way you or the witness are vulnerable and what steps, support or adjustments you wish the court and the judge to consider.

I have mental health disabilities (PTSD and autism) which impair my daily social and occupational functioning. I struggle with severe sensory overwhelm and "autism burnout" especially when I am experiencing distress. My motor movements can become erratic, and my presentation can be a source of concern to those who are not familiar with autism, PTSD, and neurological disorders.
Part 3A participation measures help me stay calm, focussed, and give my best possible witness evidence. In the past, these measures have included (i) formulating the questions with clarity, (ii) avoiding innuendos, (iii) calling for a break if I become distressed or overwhelmed, and (iv) ensuring that the defendant has no contact with me whatsoever, under any circumstances.

☐ No

Does, or will, your claim include any issues under the Human Rights Act 1998?

☑ Yes

☐ No

Claim no.	

Particulars of Claim

☐ attached

☐ to follow

1. At the final hearing of the financial proceedings the defendant's sworn asset schedule ES2 dated 19.02.2024 identified Oxus Acquisition Corp. as a “ non-matrimonial business interest” and attributes a fair market value of “ zero” to the 50,000 Oxus shares.
2. The defendant gave his witness evidence under oath on 22nd, 23rd, and 26th February. He made three assertions concerning Oxus: (i) he represented that he had resigned his position as an independent director of the board of Oxus, (ii) he stated that his Founders Shares were worth $0, and (iii) he represented that his "involvement" with Oxus was a "non-matrimonial interest".
3. On 26.02.2024, the defendant's counsel made closing submissions and stated: "Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares, but they have no value"
1, 2, and 3 are false representations and constitute acts of fraud by false representation. The defendant dishonestly made representations which he knew to be false at the time he made the
The principal issues to consider are (1) how serious is the conduct (i.e. what was, or could have been, the impact on the administration of justice?); (2) what is the culpability of the defendant (his knowledge and involvement, was the action premeditated, was there a motivation, has the conduct been repeated?); (3) whether the defendant’ s actions were or created a risk of an interference with the administration of justice that was sufficiently serious to amount to criminal contempt; and (4) whether the respondent had a specific intention to interfere with the administration of justice.

In terms of harm, as a result of the defendant’ s conduct the outcome of the proceedings was unfair and the case is still in the courts. This was as the respondent intended. I suffered substantial harm as a result of these actions. The defendant’ s conduct undermines the public’ s trust in the judiciary system. The defendant was motivated by his personal gain and his lack of remorse, moral, and decency. The defendant committed fraud by false representation. He dishonestly made a false representation and intended, by making the representation, to make a gain for himself or another, or to cause loss to another, or to expose another to a risk of loss.

In terms of culpability, the defendant was responsible for his sworn statement of assets ES2 dated 19 February 2024 which he filed with the court as evidence for the trial. Likewise, the defendant was responsible for the submissions and the evidence before the trial judge, whether in writing or in oral submissions. He directed his counsel to make statements which were untrue on three occasions. The defendant knew these representations to be false, untrue or misleading at the time when he made them or directed his counsel to make them. He was in no doubt that his conduct amounted to contempt, and he directed his solicitors to ignore my emails of 29th February 2024, 4th and 6th March 2024 requesting an explanation regarding the false representation.

Statement of truth

Note: you are reminded that a copy of this claim form must be served on all other parties.

I understand that proceedings for contempt of court may be brought against a person who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☑ **I believe** that the facts stated in this claim form and any attached sheets are true.

☐ **The claimant** believes that the facts stated in this claim form and any attached sheets are true. **I am authorised** by the claimant to sign this statement.

Signature

Nadia Zahmoul

☑ Claimant

☐ Litigation friend (where claimant is a child or protected party)

☐ Claimant's legal representative (as defined by CPR 2.3(1))

Date

Day	Month	Year
20	02	2025

Full name

NADIA ZAHMOUL

Name of claimant's legal representative's firm

NA

If signing on behalf of firm or company give position or office held

NA

Claimant's or claimant's legal representative's address to which documents should be sent.

Building and street

NA

Second line of address

Town or city

County (optional)

Postcode

If applicable

Phone number

NA

DX number

Your Ref.

Email

NA

Find out how HM Courts and Tribunals Service uses personal information you give them when you fill in a form:
https://www.gov.uk/government/organisations/hm-courts-and-tribunals-service/about/personal-information-charter

DATE	DESCRIPTION OF EVIDENCE	SOURCE OF EVIDENCE	IS EVIDENCE TRUE OR FALSE?	ON WHAT DATE DID KZ KNOW?
6-Feb-2024	**Form 8-K Exhibit 3.1 Certificate of Continuance (exhibit NZ1 p. 77).** The Board approved the Continuance (as defined in the Proxy Statement), Mr Zahmoul's signature appears in p. 77 of the Certificate of Continuance.	SEC	NA	6-Feb-2024
7-Feb-2024	**Form 8-K filed on 13 Feb 2024 reports the closing of the Business Combination.**	SEC	NA	7-Feb-2024
8-Feb-2024	**SEC Form 8-K Exhibit 99.1 stated that following the Business Combination of 7 February 2024 Borealis would start trading on Nasdaq on 8 February 2024 under the ticker symbol BRLS.** Eleven days before the U.K. trial began, Oxus SPAC completed its business combination, and the new shares began trading on Nasdaq.	SEC	NA	8-Feb-2024
8-Feb-2024	On 8 February 2024 at 4:45pm EST, Rakishev posted a photograph on his Instagram account featuring the defendant, three associates, and himself at the Nasdaq exchange in New York's Times Square. The time stamp is visible on the picture.	RAKISHEV INSTAGRAM POST	TRUE	8-Feb-2024
19-Feb-2024	TRIAL BEGINS			
19-Feb-2024	**Perjury in Sworn Statement of Assets on Form ES2 (exhibit NZ1 p. 91).** The trial started on 19 February 2024 at the Royal Courts of Justice, High Court. Mr Zahmoul filed his sworn statement of assets on Form ES2 dated 19 February 2024. **He reported a fair value of $0 for the Oxus shares. On that day, the market value of the shares shares was $500,000 as per Nasdaq closing price.**	Mr Zahmoul SWORN STATEMENT	PERJURY	8-Feb-2024
19-Feb-2024	**Counsel Note on Behalf of the Respondent Husband (exhibit NZ2 p. 111) Para. 24.** " H has also taken on work as a non-executive director for Oxus Acquisition Corp. He is not paid a salary but has been awarded founder shares for his input [4335]. **He is hopeful that those shares will in time have value to reflect his input.** Otherwise, H plans, subject to liquidity pressures, to carry on as a niche private investor seeking out profitable returns in the future". **This is a false statement. On 19 February 2024 the shares's market value was approximately $500,000.**	Mr Zahmoul's `counsel - SWORN STATEMENT	PERJURY	8-Feb-2024
22-Feb-2024	**Witness Evidence.** The defendant was lawfully sworn as a witness in the U.K. trial. He wilfully made false statements which he knew to be false and did not believe to be true; and which were material in the proceedings. He falsely stated in his witness evidence to the Court that the value of the Oxus shares was $0.	Mr Zahmoul-UNDER OATH	PERJURY	8-Feb-2024
26-Feb-2024	**Counsel Oral Submissions on Behalf of Respondent Husband (exhibit NZ2 p. 93).** In her closing submissions on behalf of the defendant Ms Campbell KC asserted: "Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares; they are of no value". This was a false statement. On that day, the market value of the Oxus shares was $500,000, as per Nasdaq trading prices.	Mr Zahmoul's `counsel SWORN STATEMENT	PERJURY	8-Feb-2024
28-Feb-2024	**Counsel Closing Submissions on Behalf of the Respondent Husband (exhibit NZ2 p. 170).** He no longer works as a director of Oxus (a role he lost when the business merged with Borealis) but did not earn any income and was only reimbursed business related expenses, [s.25 statement paragraph 30]."	Mr Zahmoul's `counsel SWORN STATEMENT	PERJURY	8-Feb-2024
28-Feb-2024	END OF TRIAL			
29-Feb-2024	First email to Mr Zahmoul's solicitors.	Applicant	NA	28-Feb-24
4-Mar-2024	Second email to Mr Zahmoul's solicitors	Applicant	NA	28-Feb-24
6-Mar-2024	Third email to Mr Zahmoul's solicitors	Applicant	NA	28-Feb-24
7-Mar-2024	**Email to judge re Oxus SPAC demonstrating proof of perjury and contempt**	Applicant		28-Feb-24
9-Apr-2024	Email to judge re threats to safety.	Applicant		

H Perjury Regarding Re-Statement of IRS Tax Returns

BM	**Have you rectified the tax returns, there was a number of errors**
KZ	2022 were done, they were fixed. 2022 was done the way Nadia wants it done. 2020/2021 was sent by Zack in august, Zack said would you like us to refile and there has been no engagement
BM	Meant to be uncontroversial
KZ	2022 has been filed correctly
BM	It's with the IRS now?
KZ	Yes, done the work, sent it to her and get nothing back. 2022 have been filed, 2020 and 2021 are in the way she says are false, the entities which fed into the personal tax return, mine is a non-personal tax return, it is not relevant from a tax perspective. 2022 has been filed the way she wants.
BM	2022 has been filed, 2020 and 2021 haven't been filed?
KZ	Rectifying them exposed things to reinvestigation. We sent them to Jeff for approval, we have had nothing back
BM	The position is that nothing in any of these returns would be relied upon by you to thwart any order made
KZ	No, they are returns
BM	Those returns misrepresent the partnership returns
KZ	No not correct, the only legal document is between us and the back. If the tax returns we can fix them
BM	I want you to be able to reassure the wife, you will not rely on anything in those tax returns to thwart the interpretation of an order by His Lordship
KZ	Yes, that is not possible.